

HEINONLINE

Citation:

E. Wyndham Hulme, On the History of Patent Law in the
Seventeenth and Eighteenth Centuries , 18 L. Q. Rev.
280 (1902)

Content downloaded/printed from [HeinOnline](#)

Sat May 26 08:42:29 2018

- Your use of this HeinOnline PDF indicates your acceptance of HeinOnline's Terms and Conditions of the license agreement available at <https://heinonline.org/HOL/License>
- The search text of this PDF is generated from uncorrected OCR text.
- To obtain permission to use this article beyond the scope of your HeinOnline license, please use:

[Copyright Information](#)



Use QR Code reader to send PDF to
your smartphone or tablet device

ON THE HISTORY OF PATENT LAW IN THE SEVENTEENTH AND EIGHTEENTH CENTURIES.

IN previous communications we have been content for the most part to accumulate data illustrative of the origin of the English patent system in the sixteenth century. In the present paper we shall commence by stating what appears to be the correct historical interpretation of the sixth section of the Statute of Monopolies, and then proceed to account for the divergent trend of patent law in the latter half of the eighteenth century. First, was the Statute of Monopolies 'simply declaratory of the common law' (Webster, p. 29), or were the 'conditions of validity under the statute and at common law different'? (Ibid. p. 33).

At first sight there would appear to be disconformity on the following points: the common law recognized two parties as the proper recipients of the royal favour, viz. the 'bringer in' or institutor and the discoverer or inventor—a marked preference being assigned to the former: but the statute restricts future grants to the true and first inventor.

Again, the common law decisions prior to 1623 suggest that to qualify for a patent the applicant must have taken certain steps toward introducing the industry; but the statute is silent upon this point. Such qualification was of course constantly alleged by the applicant as the groundwork of his petition. Is there then disconformity on this point between the statute and the law of which it is professedly declaratory? To answer this question we must first apply to the statute the well-known axiom of construction that a document must be interpreted by the light of the contemporary meaning of its phraseology. Turning to the recent issue of the great Oxford Dictionary we learn that the verb 'to invent' and its derivatives possessed, in addition to their modern connotation, two distinct meanings now archaic or obsolete. Invention in the sense of 'discovery' is now obsolete except in phrases relating to the invention of the cross, i.e. the reputed finding of the cross by Helena, mother of the Emperor Constantine. The words also possessed a meaning which, in the case of the verb 'to invent,' is defined as 'to originate, to bring into use formally or by authority, to found, establish, institute or appoint.' This rendering establishes

complete conformity between the statute and common law both as to the legal definition of the grantee and the expressed consideration of the patent grant. In the *Clothworkers of Ipswich* case the phrase 'invention and a new trade' is actually used to distinguish an imported manufacture from 'invention,' i.e. the result of the exercise of the inventive faculty: 'If a man hath brought in a new invention and a new trade . . . in peril of his life or consumption of his estate, or if a man hath made a new discovery of anything, in such cases,' &c. Again, 'Of a new invention [i.e. in respect of a new institution] the king can grant a patent,' but 'where there is no invention the king cannot by his patent hinder any trade.' We may conclude, therefore, that the proper interpretation of 'the true and first inventor' of the statute in 1623 was the true and first founder or institutor of a manufacture. Invention, i.e. the exercise of the inventive faculty, was not an essential qualification—institution of the manufacture, from whatever source derived, was the valid consideration of the patent grant under the statute.

Secondly, as to the statutory definition of novelty. Here the statute, which confines future grants 'to the sole working and making of new manufactures . . . which others at the time of making such letters patent and grant shall not use,' is explained by the clause in the letters patent which avoids the grant on proof that the said invention 'is not a new manufacture as to the public use and exercise thereof.' Modern commentators, however, jump to the conclusion that therefore 'there must be novelty.' But manifestly a proper deduction from the clause is that want of novelty could not be raised as a separate issue apart from prior user. Neither in *Bircot's* case or in Coke's commentary do we find any trace of the doctrine that proof of prior publication would avoid a patent. On the other hand the history of Sturtevant's patent (L. Q. R., xiii, p. 315) shows that disclosure *per se* was regarded as insufficient to support a patent. On this point, however, of the statutory limitation of novelty, evidence confirmatory of the above view will be found in the following narrative.

In or about the year 1661 one Yarranton, who had acquired the art of making tin plates and was desirous of introducing the industry, found himself blocked by an obstructive patent from which, as it does not appear in the official blue books, we make the following extract:—

Patent Roll, 13 Car. 2. 'Whereas we have been informed by the humble petition of . . . William Chamberlaine and Dud Dudley Esquires that by their industry and study with much charge and expences they have attained to the perfection of plateing of

steel, iron, brasse and copper and of the tynning of the same plates being their own invention and never before done or used in these our kingdomes or any the dominions or territories thereof, and whereas the said William Chamberlaine and Dud Dudley have humbly besought us *for their better encouragement to exercise and put in practise the said invention*, that we would be graciously pleased to grant them our letters patent of privilege for the sole use and benefit thereof for the time and term of fourteen years according to the statute in that case made and provided Now know ye,' &c.

The patent is voidable in case 'the plateing of steel, &c., is not a new invention of the petitioners as to the public use and exercise thereof within the realm,' &c. No steps were taken to prosecute the grant with effect, but in 1673 Wm. Chamberlaine obtained a reissue of the patent. Upon this later grant Yarranton makes the following comments:

'By way of digression,' he proceeds, 'I make these queries upon patents, because I know they commonly drive trade out of the kingdom.

'Whether this patent for making tinn plates is in force, the *patentee having made none since the granting thereof?* And whether this patent be in force if renewed since tinn plates were made by others?

'Whether patents (for making any sorts of glass) be not void, because glass was made before; and it is but improvement of art? Patents are by the statute for new inventions, that is all new.'

He then proceeds to cite other cases of mere improvement for which patents of doubtful validity had been obtained. He continues—

'And so I may make queryes of most patents . . . because the statute that gives the king power to grant patents for fourteen years limited it wholly to a new invention; for it must not be putting a new piece unto an old cap that must serve turn . . . , but the question with us will be whether it be new, and all and every part of the invention new in this nation? and if so, questionless it is within the meaning of the statute.'

Yarranton's disquisition on the principles of patent law at the Restoration are, of course, in the main an expansion of Coke's Commentary. His interpretation of 'new manufactures' is identical with that of Lord Coke, viz. that the privilege must be 'substantially and newly invented.' 'Novelty,' therefore, according to these authorities is thus limited under the statute: the field of comparison is limited to the existing practice of the art within the realm; but within this limited area absolute distinction may be required to be shown (*Bircol's case*. Coke, Inst. iii. 184).

Yarranton's commentary also serves to explain the obscurity introduced into patent law by the narrowing of the connotation of the term 'inventor.' Without accepting his version of the motives actuating Dud Dudley and his partner it is clear that obstructive patents could now be obtained by (and extended to) parties interested in opposing the introduction of an industry. The expressed obligation to institute the manufacture, of which Yarranton is vaguely conscious, had disappeared from the contract (unless voluntarily reintroduced by the applicant); and the theory of disclosure had not as yet taken its place. How the latter principle found its way into patent jurisprudence, firstly by the insertion by the applicant of a fuller technical description of the invention in the petition (subsequently copied into the recitals of the patent); secondly, by his proposals to file a specification within a stated term after the issue of the letters patent, and finally in the occasional insertion by the law officers of a clause making this condition obligatory, has been discussed already (L. Q. R., July, 1897). Compulsory disclosure can be traced back as far as A.D. 1716, but the uniform insistence upon the acceptance of this condition did not become part and parcel of patent practice until a much later date, viz. circa 1740. Let us now see how the construction of this clause in the letters patent reacted upon the theory of patent law in the latter half of the eighteenth century. *Dollond's* case in 1766 established that proof of priority of invention without publication will not invalidate a later patent to an inventor who has disclosed the invention, although the first inventor be a native of the realm. This ruling case sharply distinguishes the English patent system from that of America, which supports the true and first inventor's rights against all comers. The decision embodies the first intimation of the doctrine that disclosure by the patentee is the real consideration of the patent grant. In 1776 the authority of Coke was rudely shaken by the reversal in *Morris v. Bransom* of the law laid down in *Bircol's* case respecting the validity of patents of addition.

In 1778 we reach the case of *Liardet v. Johnson*, with which we shall deal somewhat fully. The facts relating to this trial are set out in the following report, which we reproduce from the *Morning Post* of Feb. 23, 1778 (No. 1667, p. 2, col. 4).

Law Intelligence. King's Bench.

'On Saturday was tried, before Earl Mansfield and a special jury, a remarkable cause, in which Mr. John Liardet, clerk, and Messrs. Adam, of the Adelphi, were plaintiffs, and Mr. John Johnson, of Berner's Street, defendant. The action was brought by the plain-

tiffs for an infringement of a patent, and Act of Parliament, granted to them for a term of years, for the new invented stucco, or composition, to imitate stone, for covering the outside of buildings. Johnson (the defendant) had taken out a patent for a composition imitating that of the plaintiffs and his having executed several works in consequence thereof was the cause of bringing this action. He did not, however, attempt to support his patent before the court, but rested his defence solely upon this question, Whether the plaintiffs' composition was a new and useful invention, and whether their patent and specification were sufficient to support the exclusive privilege which they claimed?

'Dictionaries of arts and sciences and books of all languages were ransacked to prove receipts for compositions similar to the plaintiffs'; some ineffectual verbal evidence was also adduced to prove that different attempts had been made to discover a similar composition prior to Liardet's; but some of the most eminent and experienced architects, plaisterers, and builders gave the most ample testimony of the novelty and utility of the plaintiffs' invention, and that till it came in use they knew no stucco that would, in this climate, stand on outside work exposed to the weather. The legality and justness of the patent and specification being also proved to the satisfaction of the jury, a verdict, with costs, was given for the plaintiffs, by which the validity of the patent is fully established, the benefit of this useful and beautiful invention confirmed to the proprietors, and the publick secured from any attempts to impose a spurious imitation of it upon them in future.'

This decision led to a brief paper warfare, which has preserved to us not only the substance of the speeches by counsel engaged in the trial, but also a verbatim report of Lord Mansfield's address to the jury, which is here reproduced in abstract from pamphlet (c) scheduled below¹.

'Gentlemen, this is an action which comes out of the Court of Chancery, when a bill was first filed by the plaintiff[s] here for a violation done to them by the defendant, in making use of an

¹ For the purposes of reference the following account of the literature of the trial will be useful.

(a) An appeal to the public on the right of using oil cement. 1778. 8vo, pp. 79. May be seen at the British Museum or Patent Office Libraries. It contains a list of anticipations relied upon by the defendant, with a general statement of the law as to novelty and sufficiency of description. It was favourably reviewed in the *Monthly Review*, vol. ix, where brief notices of the following pamphlets will also be found.

(b) *Observations on two trials at law, &c.* A somewhat scurrilous pamphlet. British Museum Library.

(c) A reply to *Observations on two trials at law*, respecting Messrs. Adams' new invented stucco, containing Mr. Wallace's reply to Mr. Dunning, with the summary of the evidence and the charge to the jury as taken down in court. London, [1778]. 8vo. Of this pamphlet only one perfect copy is known to the writer, viz. in the Bodleian Library. A MS. copy of the summing up of Lord Mansfield has been placed in the Patent Office Library (No. 28165). The Museum copy is defective, wanting nearly the whole of the judicial summing up.

invention to which they are entitled by letters patent, confirmed by Act of Parliament. And to be sure, there are two extremes in such trials always to be avoided. The one is not to deprive the inventor of the benefit of his invention for the sake of the public; because the public is concerned that men should have such an advantage, as they get by their endeavours many new discoveries in looking for things which never succeed. So in the play of the Alchymist, when Sir Epicure Mammon was looking for the philosopher's stone he found out a cure for the itch. Thus, if they don't get what they are looking after, they find something else, and some of the greatest inventions we know of have been hit upon by accident. And whenever an invention consists of a composition, people are led by theory to make experiment: but it must depend upon the experiments; and therefore one extreme is to defeat the intention of the law, which is to give the benefit to such discoverers. The other extreme is, the suffering men to get monopolies of what is in use and in the trade, at the time they apply for the letters patent; and therefore the statute of King James expressly qualifies it. That it must be of such inventions as are not then used by others; and that is the proper construction, which you will consider of in the course of my summing up the heads of this case.

Now there are three grounds that must be made out to your satisfaction:

'The first is (I think in order of method, though they have not made it the first at the bar) that the defendant did use that which the plaintiff claims to be his invention. If he did use it, the next point is (because it is his justification for using it) whether the invention was new or old, within the sense of the Act of Parliament.

'The third point is whether the specification is such as instructs others to make it. For the condition of giving encouragement is this: that you must specify upon record your invention in such a way as shall teach an artist, when your term is out, to make it—and to make it as well as you by your directions; for then at the end of the term, the public have the benefit of it. The inventor has the benefit during the term, and the public have the benefit after. But if, as Dr. James did with his powders, the specification of the composition gives no proportions, there is an end of his patent, and when he is dead, nobody is a bit the wiser; the materials were all old—antimony¹ is old, and all the other ingredients. If no proportion is specified, you are not, I say, a bit the wiser; and, therefore, I have determined, in several cases here, the specification must state, where there is a composition, the proportions; so that any other artist may be able to make it, and it must be a lesson and direction to him by which to make it. If the invention be of another sort, to be done by mechanism, they must describe it in a way that an artist must be able to do it².'

¹ An ingredient in Dr. James's fever powder. A sum of money was subsequently voted by Parliament to the inventor.

² This portion of Lord Mansfield's summing up must be regarded as an *obiter dictum*, as the sufficiency of the plaintiff's amended specification does not appear to have been challenged by the defendant.

After describing the invention, and calling attention to the evidence showing infringement, the judge continues:—

‘The next consideration is whe[ther] this is a new invention within the meaning of the Act or an old one and at that time in use in the trade.’

The learned judge then proceeds to point out that the defendant in a patent taken out subsequently to that of Liardet had sworn that his own composition was a new invention, notwithstanding the evidence of anticipations of both patents now produced in his behalf. ‘No evidence can be stronger against him than this.’ The law of prior user is then stated as follows:—

‘Now with regard to the invention being in use, as I told some gentlemen upon the jury two or three days ago, it must be taken in this latitude. It is not a man’s having made an attempt; it is not a man’s having suggested an idea; it is not a man’s having it in a closet; it is not a man’s hitting upon it by accident and not pursuing it farther, knowing he has hit upon a good composition, but it must be something in the trade that is followed and pursued. It is not an invention that a man may have made use of in an instance or two, and dropped it, and never claimed it after, that will prevent another inventor (without any privity of knowledge of those materials) if he really hits upon those materials and makes a composition of service to artists.’

Then as to prior publication.

‘Here is a great deal of evidence material upon both sides of its being old, in the sense the defendant contends for, and not in the sense the plaintiff contends for. First there is written evidence to show that it is old, and there are dictionaries, first Alberti’s book, and then a dictionary of 1726, followed by four more dictionaries to 1764.’

Prior anticipation in specifications and the evidence of witnesses and of experiments on both sides is next dealt with. He then proceeds to state the law as to utility¹.

‘It is not material to try the exact excellence of a composition; if the composition is good for nothing the plaintiff gets nothing, and nobody gains by it. Is it a new invention? Is it new? For if it is new and good for nothing, nobody will make use of it. The great point is, is it a new thing in the trade, or was it used before and known by them? Now to contradict this and to show the trade did not know the process of it, and had not used it, and that those who had read of it, and heard of it, did not know it and could not venture upon it with certainty: you have a great number of architects upon the plaintiff’s side, and plaisterers. . . . And it is

¹ ‘We cannot subscribe to this great authority when he represents the merit of the invention as of little consequence, because it is obvious that patents for ineffectual or imperfect discoveries are the means of preventing better things. . . .’ Extract from ‘Monthly Review,’ vol. 60.

material . . . that in all patents for new inventions, if not really new discoveries, the trade must be against them; for if it is an old thing it is a prejudice to every man in the trade; it is a monopoly.' 'Then if it is fairly an invention, that it was not in the knowledge of the trade at the time the letters patent were granted. The next consideration is whether the specification teaches you to make it again.' On this point no rebutting evidence was adduced.

Concluding remarks.

'You have the whole of the case before you. . . . You will settle in your minds whether the defendant has used the composition, whether it is old or new: in the next place whether it is such a one as was in use in the trade at the time of the letters patent; or really and fairly a new invention, which they had not. Whether it was in books or receipts, it never prevailed in practice or in the trade. And the last thing is whether the specification don't teach any other artist to make use of it.' Verdict for the plaintiff.

The interest of this trial centres broadly upon the judicial interpretation of 'novelty' under the statute and in the letters patent. According to Lord Mansfield, the issue of want of novelty must be supported either by proof of continuous and successful prior user of the invention, or, that the substance of the invention was common knowledge in *the trade*. Unquestionably this ruling embodies the correct interpretation of the statutory limitation of novelty, but its applicability in the eighteenth century was negatived by its failure to realize the entire change introduced into the conditions of the contract between the Crown and patentee by the interpretation first placed by Lord Mansfield upon the function of the specification. With the shifting of the 'consideration' of the patent grant from practice to disclosure a corresponding alteration in the legal limitation of novelty became necessary.

This view we find emphasized, although without success, by Mr. Dunning, the defendant's counsel. The grant, according to his statement of the law, is limited by a proviso (a misquotation by the way of the clause in the letters patent)

'That that which was known to the public before the date of the letters patent shall be open to all. By being known to the public is and must be understood anything which has been conveyed in a public manner, such as by a general publication in print or by public use.'

If space had permitted we should have been glad to reproduce a fuller account of Mr. Dunning's argument, which contains references to decisions not to be found elsewhere. It is noteworthy that the defendant's pamphlet was utilized by Buller (*Nisi Prius*, 2nd ed.) and Carpmael's Patent Cases, while that of the plaintiffs was

unknown even to Bramah, who would scarcely have submitted to the Court his own version of this trial, if he could have referred to the verbatim report contained in the plaintiffs' publication.

We conclude that the existing law of prior publication is based not upon the statute, but upon general considerations of the nature of the contract between the Crown and the patentee, as modified by the new clause in the letters patent. If the substance of an invention has been conveyed to the public in any form or shape, a subsequent disclosure of the same invention by a later inventor cannot form the basis of a valid monopoly. The contract will lack consideration, and will therefore be null and void.

E. WYNDHAM HULME.
